



BYLAWS OF THE BLACK CHIEF OFFICERS COMMITTEE



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BYLAWS OF THE BLACK CHIEF OFFICERS COMMITTEE

ARTICLE I NAME

The organization is a standing committee of the International Association of Black Professional Firefighters (IABPFF) and shall be named the Black Chief Officers' Committee, hereafter referred to as "BCOC".

ARTICLE II PURPOSE

The "BCOC" is a membership organization formed to provide unique resources to Black Fire Executives to enhance their ability to better serve the public and the firefighting profession. The BCOC shall exercise leadership in the development of minorities in public and private management positions; sponsor forums for discussion of timely issues and topical concerns; support the development and maintenance of a repository of Black Executive talent for job openings and technical assistance.

Section I: Directives

- a) To serve as a resource to the members of the IABPFF and assist in providing mentoring to the organization's leadership.
- b) To assist our Black brothers and sisters in securing appointments as chief officers as well as other advancements within the fire service.
- c) To represent the IABPFF at all Chief Officer functions when appropriate and necessary.
- d) To promote unity between Chief Officers and other members of the IABPFF.
- e) To continue to be active participants within the IABPFF.
- f) To provide a viable and valuable conduit between the IABPFF and the IAFC.

Section II Functions

- a) To identify and respond to issues within the fire service that affect Black firefighters **and Black Communities**, which merit attention, inquiry or investigation.
- b) To provide a forum for discussion of issues which affect Black firefighters and the fire service.
- c) To develop recommendations for corrective action to resolve issues that affect Black firefighters.



- c) To provide resources which enhance the upward mobility of **blacks in the fire service**.
- d) To develop an effective network of information on promotional opportunities for Black Firefighters.

ARTICLE III MEMBERSHIP

Membership is open to any person holding the rank of Chief Officer in a paid fire organization, and a member of a local affiliate or independent member of the IABPFF (if one exists) and is financially current with regards to applicable dues.

Each application for membership will require a recommendation from a member in good standing. The application Membership requires a recommendation from the BCOC Membership Committee to the Executive Board, and confirmation by majority of the Executive Board.

The BCOC Membership Committee shall consist of BCOC members, and serve for a term determined by the BCOC Chair.

Section 1: Categories

- a) **Individual Membership:** Open to all Chief Fire Officers who subscribe to the goals and objectives of the organization.
- b) **Associate Membership:** Open to all professional associations, organizations and institutions- public and private - which subscribe to the goals and objectives of the BCOC and especially wish to help promote equal opportunities for all minorities.
- c) **Corporate Membership:** Open to all private organizations, which subscribe to the goals and objectives of the BCOC.
- e) **Retired Membership:** Open to any BCOC member who, at the time of separation, without prejudice, from a paid fire organization, was a member in good standings, is eligible for retired membership.
- f) **Affiliate Membership:** Open to all non-chief officers of fire rescue, EMS and communications department personnel who subscribes to the goals and objectives of the organization.
- g) **Only Individual and Retired** Membership are eligible to vote and hold office in the BCOC.



ARTICLE IV OFFICERS

1. The officers of the BCOC shall consist of a Chairperson, Vice Chairperson, Recording Secretary, Correspondence Secretary, Treasurer, Financial Secretary, Parliamentarian and the immediate past Chairperson.
2. These elected officers shall constitute the makeup of the BCOC Executive Board hereafter referred to as the Executive Board.
3. At least five (5) Board Members are required for a quorum.

Section 1 Chairperson

- a) The Chairperson shall preside at all meetings of the BCOC and Executive Board and perform all the duties pertaining to the office of the Chairperson. Appoint Regional Coordinators, BCOC committees and other staff assignments as prescribed by the Executive Board, In addition he/she shall perform those duties that may be prescribed by the BCOC and bring such matters to the attention of the Executive Board.
- b) The Chairperson shall represent the BCOC at official functions and in activities or deliberations which require the BCOC representation.
- c) The Chairperson shall approve official BCOC announcements, statements and correspondence when in the Chairperson's opinion, such documents accurately reflect the consensus opinion of the BCOC.
- d) The Chairperson shall accept volunteers or appoint members to BCOC committees as necessary. Additionally, the Chairperson shall receive reports, proposals, and minutes of BCOC committees for transmittal to the membership.

Section 2 Vice Chairperson

- a) The Vice-Chairperson shall act for the Chairperson when the Chairperson is unable to attend BCOC meetings, Executive Board meetings or a function where BCOC representation is required or desired.
- b) Additionally, the Vice Chairperson shall serve as coordinator of appointed committees, keep a calendar of all committee meetings (Executive, standing, etc.) and perform such other duties as may be prescribed by the Chairperson.



Section 3: Recording Secretary

- a) The Recording Secretary shall keep minutes of regular meetings, by the Chairperson, and shall disseminate minutes of BCOC meetings to the Membership.
- b) The Recording Secretary shall assist in identifying and selecting material relevant to proposed agenda items, and shall collaborate with the Correspondence Secretary in disseminating such material to all members prior to BCOC meetings.
- c) In addition, as necessary, the Recording Secretary shall assist the Correspondence Secretary in notifying the membership of meetings and perform all duties pertaining to the office, or as prescribed by the Chairperson.

Section 4: Correspondence Secretary

- a) The Corresponding Secretary shall send written notice of regular and called meetings and conduct the correspondence of the BCOC.
- b) The Correspondence Secretary shall assist the Recording Secretary in gathering and preparing materials and relevant to BCOC meetings

Section 5: Parliamentarian

- a) The Parliamentarian shall have the responsibility for ensuring that meetings are conducted in accordance with parliamentary procedures as outlined in Robert's Rules of Order.
- b) Additionally, the Parliamentarian shall prepare the BCOC for silent meditation at the beginning of each meeting.

Section 6: Treasurer

- a) The Treasurer shall be held accountable for all monies due and in receipt of the organization. The Treasurer shall also be responsible for the accurate disbursement of funds owed by the BCOC.
- b) All checks, drafts, payments of money or evidences of indebtedness, issued in the name of the organization, shall be signed by the Treasurer and either the Chairperson or his/her designee. The designee must be a Board member. The Board retains the authority to designate an institution(s) for the deposit of funds of the organization.
- c) The Treasurer shall ensure an external annual financial statement and audit report is prepared within thirty (30) days of the end of the fiscal year. The external auditor shall be approved by the Executive Board.



Section 7: Financial Secretary - Amended statement will add the position of Financial Secretary to the Executive Board of the BCOC, thereby creating the position of Financial Secretary. The amended statement shall read as follows:

- a) The Financial Secretary shall be responsible for supervising the use of all asset of the Black Chief Officer's Committee (BCOC).
- b) The Financial Secretary shall ensure that all monies of the BCOC are deposited in proper accounts and that the BCOC is properly bonded.
- c) The Financial Secretary will keep record of all funds collected and dispersed by the treasurer and that funds are collected, recorded, and disbursed according to accepted accounting principles and in accordance with the Bylaws of the BCOC and policies adopted by the Board.
- d) The Financial Secretary will report to the annual conference on the financial condition of the BCOC, including summary of all revenues and disbursements.
- e) The Financial Secretary shall assist the Treasurer in gathering and preparing materials relevant to BCOC meetings.

ARTICLE V ELECTION

Section 1: Time and Place

- a) Election of officers shall take place in odd and even (or staggered) years at the annual BCOC conference.
- b) Elections of the Chairperson, Recording Secretary, Financial Secretary, and Parliamentarian shall take place in odd years.
- c) Elections of the Vice Chairperson, Treasurer and Correspondence Secretary shall take place in even years.
- d) Staggered odd and even elections shall become effective commencing with the 2017 Business year.



Section 2: Mode of Election

- a) The election of the officers of the BCOC shall be by blind ballot after direct nomination. The nominee receiving the highest number of votes ~~being~~ shall be declared elected by the presiding officers.
- b) If competing candidates receive an equal number of votes thereby creating a tie vote situation, the Executive Board will choose the winner on a majority vote of the Executive Board. This vote will be announced by the Chairperson.
- c) The Elections Committee will certify the “official results”. “Official Results” of the vote will be presented to the membership. The candidate receiving the highest number of votes shall be elected to office.

Section 3: Term of Office

- a) The term of office of the officers of the BCOC shall begin at the close of the regular annual session of the BCOC Meeting in which they were elected.
- b) Term of office for elected officers shall be limited to two (2) consecutive terms.

Section 4: Voting

A. Qualifications for receiving a ballot to cast votes at the BCOC Meeting shall be:

- 1. The member must be in good standing with the BCOC.
- 2. The member must be duly registered for the meeting (payment of registration fee.) His/her name must appear on the roll of the Treasurer.
- 3. Ballot will be passed by roll call only from the Elections Committee.
- 4. Each qualified member of the meeting will be entitled to one and only one vote.
- 5. Members' in good standing, wishing to be elected to office, shall submit their name, and the office being sought. They will submit a profile of their qualifications, and their position statement (not to exceed 250 words) to the Chair of the Elections Committee in writing before January 1st of the year they are seeking election.



6. Whenever a single candidate is nominated for any office the elections process will consist of automatic ratification by the Elections Committee after the election process. Executive Board Members must excuse themselves from voting under these circumstances if they are candidates for that position.
7. Whenever there are two (2) or more candidates for any office, the Elections Committee shall conduct an election process which shall consist of individual membership voting at the annual meeting in addition to the use of proxy/ absentee ballots.
8. The Elections Committee shall ensure the integrity of the balloting process. The Elections Committee will coordinate the distribution of absentee ballot information to all members "in good standing" after a written request for absentee ballots is received.
9. Absentee ballots will be sent to members in good standing following a request by mail or electronically to the Elections Committee stating their name, address and email contact information. Requests must be received at least 45 days before the annual meeting.
10. The Elections Committee will confirm receipt of absentee ballot requests with requesting members.
11. Absentee ballots must be returned to the Elections Committee no less than 10 days before the annual meeting unless ballots are distributed at the annual meeting directly to members leaving the conference.
12. Proxy ballots can only be disseminated by the Elections Committee to members in good standing.
13. Once proxy ballots are given to members at the annual meeting, they are not allowed to participate in any other balloting process. Proxy ballots issued are not replaceable.
14. Proxy ballots disseminated by the Elections Committee to members in attendance at the annual conference must be returned sealed to the Elections Committee and placed into the official receptacle provided for that purpose. Ballots must remain sealed until the election votes are being counted.
15. The Elections Committee will provide the "official mail results" which consist of the total of all proxy, absentee and personal ballots. The Elections Committee shall make such results available to the membership at the conclusion of the voting process.



16. All candidates stating their intention for office are subject to floor nominations prior to voting in accordance with Robert's rules of order as specified within Article IV Section 5 (a) of the BCOC Bylaws.
17. Candidates shall be nominated from the floor during the annual conference for an office that remains vacant and/or cannot be filled by a candidate for just cause during the annual BCOC conference.

Section 5: Removal of Officers

- a) The BCOC Executive Board may recommend to the BCOC membership that an officer be removed for failure to perform his/her duties. Such removal requires a two-thirds affirmative vote of both the BCOC Executive Board and the BCOC membership.
- b) Any officer of the BCOC may resign by filing (timely) written notice with the Executive Board.
- c) Following removal or resignation of an officer, the Chairperson (or Vice Chairperson in the case of the Chairperson's removal or resignation) shall appoint a member to serve the remaining term of the vacated position.

Section 6: Eligibility for Elected Office

- a) To be eligible for any elected office, a candidate must have been an individual or Retired member in good standing for at least three (3) consecutive years. Service must have been immediate prior to announcement of intention to run for office.
- b) Those desiring to run for office must be financial and in good standing at least thirty (30) days prior to the start of the Annual Conference. Members must be financially current prior to the start of the Annual Conference in order to be eligible to vote in elections.
- c) The Corresponding / Recording Secretaries shall ensure that candidate profile and position statements are disseminated to all members of the organization no less than 30 days before the annual conference.



ARTICLE VI EXECUTIVE BOARD

Section 1. Composition

The Executive Board shall be composed of the BCOC officers.

Section 2. Functions and Authority

- a) The Executive Board shall conduct the business affairs of the BCOC and set the agenda for BCOC meetings. The Executive Board shall meet, prior to the meeting, to prepare the agenda whenever possible.
- b) The Executive Board shall be authorized to initiate the removal of a BCOC officer.
- c) The Executive Board shall recommend the level of dues required by each BCOC member or member category. Effectuation of dues level shall be approved by two-thirds of the members assembled at the annual conference.
- d) The fiscal year of the BCOC shall end on December 31. The change in fiscal year is effective December 31, 2015, pending Internal Revenue (IRS) approval.
- e) A transition period shall occur between the incoming and the outgoing boards and shall be effective for a thirty (30) day interim after the close of the annual meeting. Outgoing board members shall remain functionally responsible for their respective duties. The incoming board members shall assume full duties of their respective offices at the conclusion of the Transition Period. Furthermore, during this transition period, all decisions pertaining to any new affairs must be discussed at a joint board meeting. However, the outgoing board shall not be involved in decisions pertaining to events scheduled to occur after the transition period is complete. The outgoing board members shall submit a transition report.

Section 3. Executive Coordinator

The Executive Board shall appoint an Executive Coordinator, who shall perform such duties and responsibilities as prescribed by the Executive Board.



ARTICLE VII ATTIRE AND MEETING PROTOCOLS

- a) There shall be an annual meeting, training conference/symposium.
- b) The dress shall be at least sports coat, business attire or department Class A uniform.
- c) The sergeant at arms, who shall be appointed by the Chairman at the beginning of the annual meeting, shall be stationed at the door(s). They shall admit only those persons who are in good standings with the BCOC and have registered for the meeting.

ARTICLE VIII CONDUCT OF MEMBERS

- a) Member must be loyal, respectful, helpful and diligent in assisting all members of the organization.
- b) Members found to be disloyal, disrespectful, and harmful and/or spread false rumors against brothers, sisters of this organization may be expelled from the BCOC by majority vote.

ARTICLE IX CONDUCT OF MEETINGS

- a) **Rules of Order**
The presiding officer shall preserve order and decorum and shall take no part in debates while presiding. All questions of order shall be subject to an appeal to the conference, and upon such an appeal the vote shall be taken without debate. The presiding officer may state the reasons for the decision given and shall put the question as follows, "**Shall the decision of the chair be sustained?**" A two-thirds majority of those present and voting shall be necessary to reverse the decision of the chair.
- b) **Speaking**
Every member when speaking or offering a motion shall rise, state his or her name, their City and State and respectfully address the presiding officer, and when finished speaking shall at once resume his or her seat.
- c) **Presiding Officer Duties**
When two (2) or more members rise to speak at the same time, the presiding officer shall decide who is entitled to the floor.
- d) **Point of Order**
A member called to order shall immediately cease speaking and resume his or her seat until the point of order in question has been decided, when he or she shall again be entitled to the floor.



e) **Calling Questions**

A motion to take the previous question shall always be in order except when a member is in possession of the floor, and must be put forward without debate and if supported by a majority vote of those voting, the motion shall be declared carried and no further debate or amendments shall be in order until the main question shall be decided.

f) **Motions to Adjourn**

A motion to adjourn shall always be in order, except when a member is in possession of the floor or a vote is being taken or it has been decided that vote shall now be taken. A motion to adjourn is not debatable, but a motion to adjourn to a given time is open to debate

g) **Questions without Provision**

The rules contained in the current edition of Robert's Rules of Order, shall provide guidance for the organization in all cases to which they are applicable and in which they are not inconsistent with this constitution and by-laws and any special rules of order the organization may adopt.

ARTICLE X AMENDMENT TO THE BY-LAWS

1. No amendment to the By-Laws shall be made except when notice of such Amendment has been presented at least twenty-four (24) hours prior to action, and a two-thirds vote of the members present shall be required to adopt such amendment.
2. All amendments, alterations or revisions of any part of the By-Laws shall take effect upon their adoption by the members, unless otherwise so specified.

ARTICLE XI DISTRIBUTION OF ASSETS AND PROPERTIES

1. The BCOC is organized exclusively for charitable, religious, educational and scientific purposes, including, for such purposes as, the making of distributions to Organizations that qualify as exempt organizations under section 501 (c) (3) of the Internal Revenue Code, or corresponding section of any federal tax code.
2. No part of the net earnings of the BCOC shall inure to the benefit of, or be distributable to its members, trustees, officers, or other private persons, except that the BCOC shall be authorized and empowered to pay reasonable compensation for services rendered and to make payments and distributions in furtherance of the purposes set forth in the purpose clause hereof. No substantial part of the activities of the BCOC shall be carrying on of propaganda, or otherwise attempting to influence legislation, and they shall not participate in, or intervene in (including the publishing or distribution of statements) any political campaign on behalf of any candidate for public office.



3. Notwithstanding any other provisions of this document, the BCOC shall not carry on any other activities not permitted to be carried on by an organization exempt from Federal income tax under section 501 (c) (3) of the Internal Revenue Code, or corresponding section of any future federal tax code, or by an organization, contributions to which are deductible under section 170 (c) (2) of the Internal Revenue Code, or corresponding section of any future federal tax code.
4. Upon the dissolution of the BCOC, assets shall be distributed for one or more exempt purposes within the meaning of section 501 (c) (3) of the Internal Revenue Code, or corresponding section of any future federal tax code, or shall be distributed to the federal government, or to a state or local government, for a public purpose. Any such assets not disposed of shall be disposed of by the Court of Common Pleas of the county in which the principal office of the BCOC is then located, exclusively for such purposes or to such organization or organizations, as said Court shall determine, which are organized and operated exclusively for such purposes.

By-laws initially adopted February 6, 1993

Amendments prepared for adopted February 2000

Amended January 24, 2005

Amended February 11, 2006

Amended March 2, 2007

Amended February 13, 2010 – (Raymond Brooks, Chairperson and Charlie Walker, Treasurer)

James D. Rice
Chairperson

Date

Teresa Everett
Treasurer

Date



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